CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE L

Measure L was placed on the ballot by the City Council of the City of Cupertino. The measure would adopt an ordinance amending the Cupertino General Plan and adding Chapter 21.04 to the Cupertino Municipal Code, titled the "Cupertino Parks and Open Space Protection Initiative."

The measure applies to "Protected Parks and Open Space Land," defined as the parcels and portions of parcels identified in the ordinance exhibits and consisting of parcels designated as "Parks and Open Space" on the Land Use Map of the Cupertino General Plan as of the effective date of the ordinance.

If approved, the measure would require approval by at least two-thirds of the voters of the City of Cupertino voting on the question at the City's next general municipal election before the City may: (1) amend the General Plan to redesignate Protected Parks and Open Space Land to another land use designation; or (2) approve any General Plan amendment, specific plan amendment, zoning map amendment, rezoning, development agreement, tentative map, parcel map, use permit, permit, entitlement, subdivision approval, or other discretionary approval that would authorize a "Non-Park Use" on Protected Parks and Open Space Land.

The measure defines "Non-Park Use" as any use, development, or land use designation other than Parks and Open Space, as shown on the City of Cupertino General Plan Land Use Map.

The measure would amend the General Plan to add a Land Use policy prohibiting land designated as Parks and Open Space from being redesignated, rezoned, or approved for residential, commercial, or industrial development unless first approved by at least two-thirds of the voters at the City's next general municipal election. The measure would also add a Recreation, Parks, and Community Services policy directing the City to retain lands designated as Parks and Open Space and to continue implementing policies supporting parks, open space, trails, recreation uses, and similar community resources.

The measure would not prohibit uses and activities permitted or conditionally permitted under applicable zoning regulations if consistent with the Parks and Open Space designation. It also includes an exception for certain minor boundary adjustments, lot line adjustments, acquisitions, dedications, easements, exchanges, transfers, maintenance agreements, access agreements, or similar transactions, if the City Council makes specified findings.

The measure allows the City Council, by a four-fifths vote, to add parcels or portions of parcels to the protected land exhibits if specified findings are made. Parcels may not be removed from the protected land exhibits, and the measure may not be amended or repealed, except by two-thirds voter approval.

A "yes" vote approves the ordinance.

A "no" vote rejects the ordinance.

The above statement is an impartial analysis of the Measure. If you desire a copy of the ordinance or measure, please call the elections official's office (City Clerk) at 408-777-3223 to request a copy will be mailed at no cost to you or visit https://www.cupertino.gov/Your-City/Departments/City-Clerk/Cupertino-Elections-Info/Parks-and-Open-Space-Protection-Measure. 44

End

Dated: August 13, 2026

Respectfully submitted,

[redacted]

City Attorney
City of Cupertino

FILED
AUG 18 2026
REGISTRAR OF VOTERS
COUNTY OF SANTA CLARA
By [redacted] Deputy

W: 471